

BV SLADE

The New Constitutional and Administrative Law

Volume I Constitutional Law

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Thus in different ways public law mediates relations between the state and society. In this book, attention is given to two branches of public law, constitutional law and administrative law. In each branch there is a constant interaction between the state, society and the law. Even if a legal dispute is formally only between the state and an individual there is always a third dimension to the issue—namely society, or the public interest.

1.3 CONSTITUTIONALISM

Put at its simplest, constitutionalism is the theory of constitutional law. In its modern form, constitutionalism is a body of theoretical prescriptions. It *prescribes* what a constitution and constitutional law should do, as opposed to simply *describing* what a particular constitution does. The particular version of constitutionalism that informs the new South African Constitution prescribes that a constitution must structure and constrain (ie, limit) state power. The constitution must ensure that the state has enough power to govern, but at the same time the state's power must be limited by the constitution to ensure that it does not violate the law or the human rights of its citizens. In this section we will consider the historical origins of this idea.

(a) *The limitation of state power*

While the doctrine of constitutionalism is a relatively modern one, its roots can be identified in the earliest forms of government. Over the centuries its meaning has evolved and modified. As constitutional structures have changed, so have the theories used to explain, evaluate and justify them. The essence of the doctrine is that the power of the state should be defined and limited by law to protect the interests of society.¹⁹ Constitutionalism is a way of ensuring limited government as opposed to the arbitrary rule of an autocracy or a dictatorship. The principle of limitation applies in two ways: first, in restricting the range of things which the various organs of state can do (their *competence*), and secondly, in prescribing the *procedures* they must follow in doing those things within their competence.

Constitutionalism therefore addresses the problem of 'how to establish government with sufficient power to realise a community's shared purposes, yet so structured and controlled that oppression will be prevented'.²⁰ As a theory of governance, constitutionalism shares with democratic theory a central respect for human worth and dignity. This respect is the basis, in democratic theory, of the principle that individuals should participate in the governing of their society. Similarly, constitutionalism seeks to ensure respect for human worth and dignity by imposing substantive limits on the exercise of power, even when the decision in question reflects the will of the majority.²¹ Although constitutionalism

¹⁹ See the definition of Charles Howard McIlwain *Constitutionalism: Ancient and Modern* rev ed (1947) 21–2.

²⁰ *The Oxford Companion to the Supreme Court of the United States* (1992) 190.

²¹ Walter Murphy 'Constitutions, Constitutionalism, and Democracy' in D Greenberg et al (eds) *Constitutionalism and Democracy: Transitions in the Contemporary World* (1993). See, further, on the so-called 'countermajoritarian dilemma' 3.5 below.

prescribes limits on government and the exercise of state power, these limits on the will of the majority—whether procedural or substantive—are understood as in some sense self-imposed.²² This understanding distinguishes the concept of constitutionalism from the doctrine of the rule of law which in its bare form merely requires that laws are created according to established procedures and that they are '(relatively) stable and predictable'.²³

Modern constitutionalism is thus a prescriptive doctrine in that it indicates how state power should be exercised and does not simply describe how governments exercise their authority in practice. It is also normative, that is it sets out the values that should be upheld in the governing process. These values require more than just a set of constitutional rules: as is often observed, not every country with a constitution upholds the principles of constitutionalism. The fact that it is prescriptive and normative does not make constitutionalism something that is not 'real'. Its principles influence the practice of government and are a significant ingredient in the constitutional systems of the world. They provide a standard by which the record of individual governmental systems can be measured, and by which one can be compared with another. It influences those who operate the state system: policy-makers, administrators and, most importantly, judges. The incorporation of constitutional or judicial review into the governmental order of a particular state, through the adoption of a justiciable constitution, places constitutionalism at the centre of the exercise of power.

The modern normative conception of constitutionalism makes direct prescriptions about the structure of government established in a written constitution. First, since the American and French Revolutions, it has required that government must be divided into separate branches—executive, legislative and judicial—whose exercise of powers are balanced one against the other.²⁴ Second, the American and French revolutions saw the acceptance of the idea that the right to govern emanated not from God but from the governed themselves—the people—whose agreement to obey the government is restricted to the exercise by the government of the authority that it has been granted in the constitution.²⁵ Third, it has led to the evolution of judicial review as a fundamental institutional mechanism for enforcing the specific arrangements and guarantees in the constitution. It is this third element, initially crafted by the courts and more recently explicitly included in constitutional texts, which leads to the concern that there is an inherent conflict between majoritarian democracy and a version of constitutionalism which invites unelected judges to strike down the decisions of the elected representatives of the people. We will consider this conflict (the so-called counter-majoritarian dilemma) later in this chapter.

²² J Elster 'Introduction' in J Elster & R Slagstad (eds) *Constitutionalism and Democracy* (1988).

²³ Ibid 3. The doctrine of the rule of law is discussed in Chapter 3 below. A more expansive conception of the rule of law sees the doctrine as 'intimately linked to democracy and human rights' (International Commission of Jurists *South Africa: Human Rights and the Rule of Law* (1988) 144). This conception brings modern constitutionalism and the rule of law together as commitments for the guarantee of human rights under self-bounded democratic governance.

²⁴ R C van Caenegem *An Historical Introduction to Western Constitutional Law* (1995) 19. See, further, on the doctrine of separation of powers, Chapter 3 below.

²⁵ See, further, on the idea of the social contract 1.3(b)(ii)(aa) below.

(b) Two historical models of constitutionalism

The modern doctrine of constitutionalism, which prescribes limits to the legitimate exercise of power, must not be confused with an earlier understanding of constitutionalism which merely described the institutions and functions of government. This earlier understanding remains implicit in the doctrines of the British Westminster system of governance, where the limits of government power are determined by the functions of the particular institution defined by prerogative, custom or statute, without any normative implications for the exercise of power within the bounds of each institution's authority. Thus, in British constitutional law, Parliament exercises unlimited powers to make and change the law so long as it remains within the mainly procedural constraints of the rule of law. By contrast, modern constitutionalism is more akin to the notion of a substantive rule of law or 'Rechtsstaat'²⁶ and places explicit limits on the practice of governance. In the following section we will examine two historical models of constitutionalism which have influenced South Africa's own constitutional history: the British Westminster model and the United States model.

(i) Westminster constitutionalism

The United Kingdom has no formal constitution in the sense of a document or group of documents called the British Constitution. Nevertheless, it does have a constitutional law—a set of rules defining the composition, functions and interrelationship of the institutions of government, and outlining the rights and duties of the governed.²⁷ One of the striking features of this body of law is that it has evolved over a long period of time. English constitutional structures and procedures developed gradually and progressively over a long period of time without any break in legal continuity. This may be contrasted with the American constitutional experience which witnessed the deliberate creation and implementation of a new constitutional system, involving a legal as well as political break with the past. Most modern constitutional experience (South Africa's included) has followed the American pattern.

Westminster constitutionalism²⁸ has had a profound influence on the constitutional development of a large number of states. Most of the post-independence constitutions of former British colonies, particularly in Africa, were modelled on the Westminster system. South Africa's first constitution, the Union Constitution of 1909, was a solidly Westminster-style document, and it was not until the Tricameral Constitution of 1983 that South Africa began to move away from the British constitutional model. The interim and 1996 Constitutions decisively abandon the Westminster model and its central doctrine of Parliamentary supremacy.

²⁶ This is one of the foundational principles of the German Constitution: Germany is a Rechtsstaat, a democracy and a welfare state. The Rechtsstaat principle requires the state's power to be exercised through law which is in line with the Constitution and which strives to protect freedom, justice and legal certainty. See LC Blaau 'The Rechtsstaat Idea Compared with the Rule of Law as a Paradigm for Protecting Rights' (1990) 107 SALJ 80. See, further, Chapter 3 below.

²⁷ S de Smith & R Brazier *Constitutional and Administrative Law* 7 ed (1994) 6.

²⁸ So called because the seat of the British Parliament is the Palace of Westminster in London.

(aa) Constitutional monarchy

The institution which spans the whole of British constitutional history is the monarchy. It is an institution which has developed over time from a position where it held a monopoly of government power ('absolutism') to its current position, which is described as a 'constitutional monarchy'. This term denotes that the monarch's powers are no longer absolute but are limited by the constitution. The Queen has the trappings of political authority²⁹ but in reality has a very circumscribed role.

Since the late seventeenth century, the monarch has been subject to the authority of Parliament and the common law. The monarchy has no legislative powers, and has no right to veto Parliamentary legislation. Its executive power has been circumscribed by law and its judicial power transferred to the courts. Today, the Queen occupies the position of a non-partisan head of state, with mainly ceremonial duties: 'The Queen today remains a symbol of national identity, a focal point of national loyalty, transcending partisan rivalry and strengthening social cohesion.'³⁰

(bb) Parliamentary supremacy

The institution which rivalled and came to surpass the British monarchy was Parliament.³¹ Since the eighteenth century it has been the dominant organ of the British state. This dominance is expressed in the doctrine of Parliamentary supremacy or 'sovereignty'. The classic formulation of this doctrine is that proposed by Albert Dicey (1835–1922) in 1885.³² According to Dicey, the doctrine consists of two essential propositions. The first is that Parliament has the right to make or unmake any law whatsoever. This can be called Parliamentary omnicompetence. The second proposition is that no person or body may override or set aside legislation made by Parliament. This can be termed the Parliamentary monopoly of power. There is no other constitutional authority whose powers can prevail over those of Parliament. While there are other legislative bodies, and organs of state with other kinds of power, they are all subordinate to Parliament.

So, Parliamentary supremacy in effect means that Parliament is the supreme law-making authority in the state. All other organs of the state, including the courts, are subservient to Parliament. What then prevents Parliament from being a tyrant? According to Dicey, it is the fact that Parliament is a representative of the electorate, of the people who elect it to power.³³ Parliament could therefore

²⁹ For example, the government is referred to as Her Majesty's Government, the courts are the Queen's courts and the Queen-in-Parliament is the supreme lawmaking authority in the United Kingdom.

³⁰ De Smith & Brazier (note 27 above) 121.

³¹ The British Parliament is bicameral. This means that it consists of two Houses, an unelected House of Lords (members inherit their seats) and a House of Commons which is directly elected. It is the House of Commons that is the principal legislative body, initiating policy and legislation. On bicameralism in the South African Parliament, see Chapter 4 below.

³² A V Dicey *Introduction to the Study of the Law of the Constitution* [1885] 10 ed (1959).

³³ P P Craig 'Dicey: Unitary, Self-Correcting Democracy and Public Law' (1990) 106 *Law Quarterly Review* 105, 108: 'The absence of constitutional review and the Diceyan conception of sovereignty are therefore firmly embedded within a conception of self-correcting majoritarian democracy.'

not legislate against the wishes of the people or against 'the sentiment prevailing among the distinct majority of the citizens of a given country'.³⁴

Parliamentary supremacy is best understood as the absence of substantive constraints on the power of Parliament. In the normal course of events, Parliament can enact, amend and repeal legislation as and when it pleases. It is not limited by a Bill of Rights and its legislation cannot be repudiated by the courts if it is in conflict with human rights. Parliament is however limited by certain procedural constraints, in that it must follow the procedures laid down by the Constitution before it can be said to have enacted a law, and the courts have some say over whether these procedures have been correctly followed or not. Parliament is thus bound by the rules regulating its composition and procedure, and it can change these only if it follows the existing rules in doing so.³⁵

British membership of the European Union and proposals for devolution of power to Scotland and Wales have led to a reassessment of the doctrine of Parliamentary supremacy in recent years.³⁶ Despite the absence of a Bill of Rights in the British Constitution, the European Court of Human Rights can determine whether the British government has violated the European Convention on Human Rights. In terms of its treaty obligations such a finding requires the government to introduce legislation in Parliament to change a statute or the common law in conformity with the Convention. Despite these recent changes to British constitutional law the older, unqualified doctrine of Parliamentary supremacy has had an important influence on South Africa's constitutional history.

(cc) Parliamentary government

One of the most important constitutional functions performed by the Queen is, after a general election, to call on the leader of the majority party in the House of Commons to form a government. This individual, called the Prime Minister, then chooses a cabinet of ministers. The Prime Minister and cabinet form the executive branch of government. The ministers have responsibility for the various administrative departments of the state (called 'Ministries', for example, the Ministry of Defence or Ministry of Education). The doctrine of Parliamentary government requires the Prime Minister and the cabinet to be accountable to Parliament. The Westminster model is thus distinguishable from the American model of presidential government, in which the executive accounts to the President and not to the legislature.

In its developed form, parliamentary government requires that members of the executive are members of Parliament, and that they retain the confidence of the majority party in Parliament. Once this confidence is lost they must either be replaced or the Parliament must be dissolved and re-elected. The system is

³⁴ A V Dicey *Lectures on the Relation Between Law and Public Opinion in England during the Nineteenth Century* (1905) 55, quoted in Craig (note 33 above) 111.

³⁵ D Pollard & D Hughes *Constitutional and Administrative Law: Text and Materials* (1990) 242-3.

³⁶ It has been accepted by the British courts that European Union law prevails over law of the British Parliament in the event of inconsistency: *R v Secretary of State for Transport, ex parte Factortame* (No 2) [1991] AC 603 (ECJ & HL). Since the commencement of the Human Rights Act 1998 on 2 October 2000, British courts have a limited power to test Acts of Parliament against the provisions of the European Convention on Human Rights.

supported by two rules of constitutional law: collective (or joint) and individual responsibility. The collective responsibility of the executive means that all ministers are responsible for policy decisions of the cabinet and must support them publicly. The individual responsibility of ministers means that each member of the cabinet must account to Parliament both for the policy decisions taken by the government department for which he or she is responsible, and for its administration.³⁷ Parliament has various mechanisms for enforcing these conventions. It can censure the cabinet, or an individual minister. It can table questions and demand information about the activities of a government department. It can audit and scrutinise the departmental accounts. It can deny funds to the government or withhold a minister's salary.

While the theory of parliamentary government is that the legislature controls the executive, and thereby the administration, the reality is the converse of this. In practice the mechanisms of ministerial responsibility are not effective, and the cabinet controls Parliament. There are several reasons for this. The most important is the strength of the party system. Political parties are organised on a hierarchical basis and enforce strict discipline. This gives party leaders immense influence and control over party members and allows the cabinet, through the majority party, to dominate Parliament.

(dd) Judicial independence

The British courts were originally just another branch of the state and judges enjoyed no institutional independence from the monarch. Judges exercised their power in the name of the king. Under the leadership of Chief Justice Coke (1552–1634), the courts began to assert their independence, rejecting the king's treatment of the judges as his servants. The Act of Settlement of 1701 was a landmark in the development of institutional independence for the courts in Westminster constitutions. It improved the position of the judges by providing that they could not be dismissed during good behaviour, thereby preventing the Crown from exercising the threat of dismissal which had proved effective in ensuring the compliance of the judiciary in the past.

In modern Westminster constitutions, the independence of the courts is secured by several mechanisms. Although judges are appointed by the executive, there is usually informal consultation with existing members of the bench before an appointment is made. Once appointed, a judge cannot be removed from office except by resolution of both houses of Parliament, and then only on grounds of unfitness or misconduct. The remuneration of the judges is fixed directly by Act of Parliament, and it is not possible to reduce a judge's salary during his or her tenure. There are restrictions on the right to bring legal proceedings against judges, and even if an incorrect judgment is given negligently the judge cannot be held liable. Contempt of court principles insulate the judiciary from public denigration and prevent certain kinds of public comment on matter before the

³⁷ 'All Ministers . . . are responsible for their personal acts, the general conduct of their Departments and acts done (or left undone) in their name by their departmental officials.' De Smith & Brazier (note 27 above) 197.

court. These arrangements are designed to prevent undue influence on judges from the other branches of government or from the public, both generally and in respect of particular cases. While institutional conditions vary from country to country, judicial independence is now an established feature of modern constitutional thought.³⁸

(ee) Representative government and the party system

It has often been said that British government was constitutional long before it was democratic. This means that the structures and procedures of the constitutional system were developed at a time when Parliament and the government were, by modern standards, remarkably unrepresentative of the people that they governed. It was only in the nineteenth century that the franchise (the right to vote) was extended in any meaningful way to a significant part of the population. Even then, there remained massive discrepancies in the system of representation because of the way in which the boundaries of electoral constituencies were drawn. The right to vote and to stand for office was extended to women only in 1918, and plural voting, which gave some electors more than one vote, was abolished only in 1949.

The party system arose in the seventeenth and eighteenth centuries, and was reinforced by the franchise reforms of the nineteenth century. The governments of the day wanted to widen their appeal among the newly enfranchised citizens. To meet the expectations of their supporters the government had to be in control of Parliament, and this could be achieved only through a rigid party system. The plurality electoral system³⁹ produced two predominant parties which filled the roles of government and opposition, elections being partly concerned with whether the main parties should exchange these roles. Politics became a competitive, adversarial contest between government and opposition, with Parliament the main site of the competition. Ironically, the more 'representative' Parliament became, the more its representative character was subordinated to the dynamics of the party system.

The electoral and party systems provided the basis for the majoritarian nature of the Westminster constitution. Majoritarianism exists where the political group which wins an electoral contest is able to dominate the main institutions of the state to the exclusion of other parties. Where this domination is not temporary, majoritarianism poses a threat to the principles of constitutionalism, as the majority party is able to do whatever it chooses without being constrained by the possibility of losing power in the next election.

³⁸ On judicial independence in the South African Constitution, see Chapter 6 below.

³⁹ The Westminster electoral system is a 'first-past-the-post' system. The candidate with the most votes in each constituency is elected, even though he or she may have an overall minority of support where there are more than two candidates. On electoral systems in the South African Constitution see 4.2(b)(i) Chapter 4 below.

(ii) *American constitutionalism*

(aa) *Revolutionary contract*

The theoretical assumptions of American constitutionalism are different from those of the Westminster version. The American Revolution (1775–1783) was motivated partly by the long-established constitutional principle that taxes could be levied only with the consent of those who paid them. Britain's American colonies rebelled against the obligation to pay taxes to a government in which they had no representation. After the resulting war and the constitutional break with Britain, the need arose for an appropriate legitimating theory of government. This was provided in part by the theory (first developed in the seventeenth century) of the social contract. The idea of the social contract is that when individuals come together to form a society, they accept obligations to each other and agree to respect the authority of the state which has the task of enforcing those obligations. Social contract theory holds that the state's power is only legitimate to the extent that it derives from the consent of the governed.⁴⁰ The 1787 Constitution, which unified the thirteen individual colonies into the United States of America, was the product of a deliberate process of constitution-making. Delegates at a convention drafted the Constitution on the assumption that they were representatives of the people and that the document they created reflected the popular will. For greater credibility the Constitution was then approved by the representative bodies in the different colonies. In reality, this process was hardly representative in terms of class, race and gender, but the social bias of the framers has not prevented their product from enduring for many generations. The constitution-making process gave rise to a revolutionary doctrine of constitutionalism, namely that a constitutional assembly has the power to create and enact a constitution and accord it the force of law. This new consciousness was apparent in the opening words of the United States Constitution: 'We the people of the United States . . .'.

(bb) *Separation of powers*

The separation of powers has been described (alongside representative government) as the most significant constitutional device of the modern era for the limitation of state power.⁴¹ The separation of powers principle has traditionally been regarded as the fundamental feature of the American Constitution, and one of its distinctive contributions to the doctrine of constitutionalism. While separation of powers thinking had been evident in the systems of government and political theory of earlier ages, the principle was first given consistent expression

⁴⁰ Social contract theory was revolutionary in its time as it rejected the idea of the divine right of kings to rule their subjects. One of the most famous expressions of the theory is the American Declaration of Independence (1776): 'We hold these truths to be self-evident . . . that governments are instituted among men, deriving their just powers from the governed; that, whenever any form of government becomes destructive of these ends, it is the right of the people to alter or to abolish it, and to institute a new government, laying its foundation on such principles, and organizing its powers in such form, as to them shall seem most likely to effect their safety and happiness.'

⁴¹ M J C Vile *Constitutionalism and the Separation of Powers* (1967) 1–2.

in the United States Constitution of 1787. It was also given a coherent theoretical justification, in particular in the Federalist Papers which were published at the time of the constitutional convention. The authors were able to refer to the recent writings of the French jurist Montesquieu (1689–1755), who had argued that the control of state power depended on it being divided among different government institutions.⁴² The very form and organisation of the American Constitution reflected this emphasis.

Unlike the British system of parliamentary government, the United States Constitution provides for the almost complete separation of the personnel of the legislative and executive branches of state. Legislative power vests in the Congress. It comprises the House of Representatives, which consists of 435 popularly elected members apportioned among the states according to their population, and the Senate, which has two popularly elected representatives from each state. Executive power vests in the President who is directly elected by the people and retains office for four years, whether or not he has the political support of Congress.⁴³ No member of the President's cabinet may simultaneously be a member of Congress. Thus not only is there a strict separation of personnel between executive and legislature, but each has a separate political mandate and neither can remove the other from office. Judicial power vests in the Supreme Court of the United States, the judges of which have permanent tenure, and in other courts established by Congress.

The United States Constitution did not embody the pure theory of separation of powers which had been espoused in the American colonies.⁴⁴ It was amalgamated with the doctrine of checks and balances, according to which each branch of government should be subject to some influence and control from the others. In this way, none can act completely independently but requires the 'support' of at least one other branch. While Congress has the primary law-making power, legislation can be vetoed by the President and invalidated by the courts, thereby making them subordinate partners in this constitutional activity. The President and other members of the cabinet have executive power, but some executive actions require approval by the Senate—cabinet appointments, for example, and the ratification of treaties—and others are susceptible to invalidation by the courts. In addition the President can be removed by Congress through the process of impeachment (removal from office). The Supreme Court has the highest judicial power but the judges are appointed by the President, with approval of the Senate, and can be impeached by Congress. The Court's structure and jurisdiction are subject to the authority of Congress and judges are dependent on the executive to give effect to their decisions. These and other checks and balances are either stipulated by the Constitution or have developed through convention. They ensure that while the exercise of each of the distinct powers of the state is entrusted to one institution, there is scope for participation by the others in that exercise.

⁴² His classic work *De l'esprit des lois* was published in 1748.

⁴³ It is therefore possible (and frequently occurs) that the President's party is the minority party in the Congress.

⁴⁴ Vile (note 41 above) 18.

The basic structures of separation of powers and checks and balances have remained intact since their incorporation into the US Constitution. They have given rise to a number of subsidiary constitutional doctrines. In practice however they have not always produced a balanced system of government, and over time different institutions, in particular the presidency and the Supreme Court, have usurped powers well beyond their constitutional allocation. Nor should separation of powers and checks and balances be seen as politically or socially neutral ideas. The separation of powers doctrine was a reaction against the political experiences of the American colonies and the authoritarian nature of English rule, and it continues to be based on a distrust of the state's power. In modern social conditions the restrictions which the doctrine imposes on government could favour a vested elite over a disadvantaged minority. However, the separation of powers remains an important safeguard and protection in the constitutional practice of the United States, and in other systems of government which have adopted it. One of the reasons for its continued relevance is the strong system of judicial review in the United States which allows the courts to invalidate Congressional legislation and the laws of the federal states.

(cc) Federal division of power

At its simplest, federalism assumes two levels of government within the same constitutional system, each having powers in its own right and affecting the citizens directly.⁴⁵ The principle of federalism was not conceived in the American context, but it was first given a legal basis in the United States Constitution, which divides power between a central (or federal) level of government and the governments of the fifty states that make up the federation. The emergence of federalism was an inevitable outcome of the desire to create a new central government for some purposes, and at the same time to retain the diversity of local governments for others.⁴⁶ Thus besides defining the new national institutions and their powers, the Constitution also ensured the continued existence of the former colonies as political entities by preserving their systems of government, granting them equal representation in the Senate, and making the federal principle in the Constitution difficult to amend without their consent. Furthermore, the Constitution reserved certain powers for the state governments, and attempted to safeguard them from being usurped by the federal government through the same constitutional mechanisms which ensured their existence. Unlike in the Westminster system, sovereignty was shared among a number of governmental bodies.⁴⁷ While the federal 'balance' between national and state government has always been affected by political factors, the basic structure has been preserved, in part through the supervision of the courts.

Over time, the original federal principles in the American Constitution have become significantly modified. For two centuries there has been a tension between

⁴⁵ G Sawyer *Modern Federalism* 2 ed (1976) 1ff.

⁴⁶ J D Lees *The Political System of the United States* (1969) 48ff.

⁴⁷ This may be contrasted with a system of 'devolution', in which the central government delegates certain powers to subnational governments, but without relinquishing its sovereignty. See Vernon Bogdanor *Devolution* (1979).

the competing claims of the federal and state governments, and each level of government has, at different times, made inroads on the other. However, in general terms, the trend has been for federal jurisdiction to be enlarged at the expense of the states' jurisdiction. The constitutional division of competence has not prevented the federal authorities from exercising power in most important areas of government. This is a partial reflection of the growing complexity of modern government and the need for national treatment of economic, developmental, environmental and industrial matters. The states have also become largely dependent on the federal government for their financial viability, and can be encouraged into implementing national policies in exchange for much needed revenue. This has made the system decidedly less federal in practice, though without eliminating the significance of the federal principle altogether. In so far as constitutionalism emphasises the limitation and division of state power, the federal principle is an important manifestation of constitutionalism and has been incorporated into many modern constitutional systems.

(dd) Bill of Rights

The American Bill of Rights provided a further means of limiting and restricting state power, and this institution was an original contribution to constitutional government. At first it operated only in respect of the federal government, but later provisions were also made applicable to the states. In essence, the Bill of Rights introduced substantive standards according to which acts of government could be tested and, if they fell short, invalidated. These standards incorporated many of the freedoms and liberties now regarded as basic civil and political rights: freedoms of religion, personal liberty, privacy, property, expression and movement, the principle of equality before the law, the right to a fair trial, and protection from inhumane punishment. Should Congress or a state legislature provide, for example, for indefinite detention without trial, its actions will be declared invalid by the courts as being in contravention of the Bill of Rights. The notion that certain rights of individuals are fundamental and inviolable spread across the world and today a justiciable Bill of Rights is a common feature of many constitutions.

A Bill of Rights is not self-executing and it was to a large extent the Supreme Court which determined how effective the American version would be. In its early history the Bill of Rights was thought to be compatible with what would today be recognised as human rights abuses, such as slavery, and until the mid-twentieth century it had little limiting effect on racially discriminatory law and practices. While the Supreme Court never strayed far from majority social opinion, its interpretation of the various rights was crucial to their impact on the state system. In this area the judiciary has become a focal institution of American constitutionalism.

(ee) Judicial review

It has been shown that each of the main principles of American constitutionalism—the separation of powers, federalism, and the Bill of Rights—is dependent on the courts for its enforcement. It is the extensive role of the judiciary in enforcing and

upholding the Constitution which gave American constitutionalism a greater degree of legalism than had previously been experienced. This characteristic has remained to the present day. The power of the courts to enforce the Constitution is referred to as judicial review. However the Constitution itself makes no direct reference to the courts' review powers. The Supreme Court asserted the right to review legislation early in the existence of the Constitution in the case of *Marbury v Madison*,⁴⁸ and since then judicial review has developed into a major feature of American constitutionalism. The institution is by no means uncontroversial.

Historically the Court has adopted two different approaches to constitutional interpretation. On the one hand is the 'original intent' approach in which it purports to be discovering the meaning intended by the framers of the Constitution. On the other hand there are various 'organic' approaches in which the court sees its role as interpreting the Constitution according to contemporary facts of life. While the early theory behind judicial review held that the courts would concern themselves with legal matters and leave political issues to the other branches of the state, during certain periods, particularly the 1970s, the courts have given decisions on clearly social and political issues such as abortion and the electoral system. Instead of merely 'interpreting' the Constitution the courts became involved in balancing the competing social interests of the day, and thereby assumed a more 'political' role. They were accused of 'activism', usurping the main policy-making functions in the constitutional system and transforming themselves from an institution which protected the minority to one which obstructed the majority. While charges of judicial activism are not generally made of the Supreme Court of the 1980s and 1990s, there is a considerable literature concerned with the reconciliation of judicial review with democratic theory.⁴⁹

(ff) Constitutional supremacy

With the backing of the courts' review powers, the American Constitution takes on the nature of a higher law. This means that the provisions of the Constitution will prevail over all other legal or political actions of government which are inconsistent with it: they become null and void on the basis that there was no legal authority for them. This doctrine—constitutional supremacy—may be contrasted with the Westminster doctrine of Parliamentary supremacy. In a Westminster system, Acts of Parliament are legally supreme and the constitution is subordinate. In the American system the Constitution is supreme. Until the Constitution is amended according to the prescribed procedures, its provisions place certain actions altogether beyond the bounds of all branches of government. The notion of the Constitution as higher, or fundamental law, is a prevalent doctrine in modern constitutionalism. The Constitution's status as a supreme legal norm is maintained because it is justiciable by the courts.

⁴⁸ *Marbury v Madison* 5 US (1 Cranch) 137 (1803).

⁴⁹ See J H Ely *Democracy and Distrust—A Theory of Judicial Review* (1980) 180ff.